
30 YEARS OF OPOSA V. FACTORAN: A LASTING GREEN LEGACY FOR THE CHILDREN OF TOMORROW AND BEYOND

MARTIN VAN S. PANIZAL
College of Law, West Visayas State University

“...unless the rights to a balanced and healthful ecology and to health are mandated as state policies by the Constitution itself, thereby highlighting their continuing importance and imposing upon the state a solemn obligation to preserve the first and protect and advance the second, the day would not be too far when all else would be lost not only for the present generation, but also for those to come — generations which stand to inherit nothing but parched earth incapable of sustaining life.”

— Chief Justice Hilario Davide, Jr.

ABSTRACT

In 1993, the Supreme Court of the Philippines, through the landmark case of *Oposa v. Factoran*,¹ pioneered the inclusion of intergenerational responsibility as a basis for acquiring legal standing in environmental litigation revolutionizing the environmental advocacy and movement towards attaining climate justice across corners of the globe. This article is a legal analysis that aims to explore and revisit the case of the Minors Oposa, and trace back the laws and jurisprudence both in the Philippines and in other countries it has influenced over the decades since its promulgation. An in-depth and comprehensive case analysis and research has been conducted to selected local and international law and jurisprudence in relation to the case of Minors Oposa and its foundational and revolutionary concept of intergenerational responsibility. It was revealed that the case of *Oposa v. Factoran* has made a direct and indirect impact and influence to the favorable decision of cases concerning environmental protection. Further, its influence in the formation of the 2010 Rules of Procedure for Environmental Cases in the Philippines was highlighted, particularly the inclusion of the provisions on citizen suit that underscored the rights of the people and generations yet unborn to a balanced and healthful ecology. 30 years after its historic promulgation, *Oposa v. Factoran* still remains to be a trailblazing environmental jurisprudence, paving the way and leaving a lasting legacy for the continued advancement of rights to a balanced and healthful ecology of the people today and those of the children of tomorrow.

¹ *Oposa v. Factoran*, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

Introduction

The legal system in the Philippines holds a cradle of historic and revolutionary environmental jurisprudence, producing ground-breaking landmark court decisions that are also being celebrated across international legal landscapes since their promulgation up until today. Among these jurisprudential cases include Metro Manila Development Authority v. Concerned Residents of Manila Bay,² Resident Marine Mammals of the Tañon Strait Protected Seascape v. Reyes,³ Mosqueda v. Pilipino Banana Growers and Exporters Association, Inc.⁴ to name a few. But one environmental case that made a prominent mark in the history of the environmental movement and legal system not just of the Philippines, but also those of other countries across the globe, is the infamous *Oposa v. Factoran*.⁵ Regarded as one of the most important cases ever decided by the Supreme Court of the Philippines, *Oposa v. Factoran*, paved the way as the forefront for the success of other environmental cases, with the twin concept of “intergenerational justice and responsibility”⁶ as its major key points. Three decades after its promulgation in 1993, *Oposa v. Factoran*, as a landmark case have come so far already in terms of legal influence, and up until the present contemporary times, it still remains to hold a major significance and lasting impact as a subject and center of environmental discussions, basis of court decisions, policy reformations, and international legal foundation in the aspect of environmental law and climate justice.

Oposa v. Factoran in Summary

The case of *Oposa v. Factoran* stemmed from the initiated civil case by minors Juan Antonio, Anna Rosario, and Jose Alfonso Oposa, along with other minors who were joined and represented by their respective parents, against the Secretary of the Department of Environment and Natural Resources (DENR), Fulgencio S. Factoran, Jr., and the Honorable Eriberto U. Rosario, Presiding Judge of the RTC, Makati, Branch 66. The minors further assert that they do not just simply

² Metro Manila Development Authority v. Concerned Residents of Manila Bay, G.R. Nos. 171947-48, (December 18, 2008) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/48335>

³ Resident Marine Mammals of the Tañon Strait Protected Seascape v. Reyes, G.R. No. 180771, (April 21, 2015) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/60478>

⁴ Mosqueda v. Pilipino Banana Growers and Exporters Association, Inc., G.R. No. 189185, (August 16, 2016) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/62290>

⁵ *Oposa v. Factoran*, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

⁶ *Id.*

represent themselves and their interests; because more than that, they "represent their generation as well as generations yet unborn."

The petition seeks to cancel all existing Timber License Agreements (TLAs) and cease and desist from receiving, accepting, processing, and renewing or approving new TLAs in the country in the ambitious hopes of preventing further environmental diminution, which have been the consequence of massive deforestation over the years subsequently leading to the disturbance of the biodiversity and the delicate ecological balance – a balance that have been flourishing and withstanding the changing phases of the planet since time immemorial. The adverse consequences of continued and massive deforestation are so detrimental to the point that it becomes capable of unquestionable demonstration and that the same may be submitted as a matter of judicial notice.

They argued that such actions contravene the Filipinos' constitutional right to a balanced and healthful ecology and the state's obligation to protect such rights for present and future generations.

The Regional Trial Court (RTC) of Makati dismissed the case on the grounds that the complaints state no cause of action against the defendant and raises a political question incapable of judicial review. The respondent judge further reasoned that the grant of the reliefs sought would violate the established constitutional principle of non-impairment of contracts. Hence, the special civil action for certiorari before the Supreme Court praying for the rescission and to set aside the dismissal order.⁷

Historic Ruling of the Supreme Court

Although it was not raised as an issue, the Supreme Court classified the present case as a class suit, mainly because of the fact that the subject matter being tackled is of common and general interest to all citizens of the Philippines. In its historic ruling in 1993, Justice Davide, as the ponente, underscored and upheld the revolutionary concepts of intergenerational responsibility and justice as its primary basis for its favorable decision not just to the plaintiffs, but to the generations to come. It is worth giving emphasis in the ruling that the personality to sue in behalf of the succeeding generations can only be based on the concept of intergenerational responsibility insofar as the right to a balanced and healthful ecology is concerned. Further, the court ruled that the non-impairment clause cannot as yet be invoked, for a timber license is not a contract within the purview of the due process clause; it is only a privilege, which can be validly withdrawn by the

⁷ Oposa v. Factoran, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

executive whenever dictated by public interest or welfare. Otherwise stated, the freedom of contract is not meant to be absolute; hence, the constitutional guarantee of non-impairment of obligations of contract is limited by the exercise of police power of the State, in the interest of the public health, safety, moral and general welfare.⁸

Intergenerational Responsibility clothed with Legal Standing

It has been established that the petitioners are not just representing themselves and their interest, but also encompasses the interest of those that are yet to be born in the future through the concept of intergenerational responsibility. It was probably quite a risk for the petitioners and their counsel to brave the unknown outcome of this novel case given the fact that intergenerational responsibility has rarely or even never been traced as a legal basis in the history of the legal system of any country in any part of the world as a valid reference for anyone to acquire a legal standing upon seeking a legal relief. Well settled is the fundamental principle that for someone to be considered to have a legal standing in a case, one must sustain or is in immediate danger of sustaining an injury as a result of the act complained of.⁹ Such actual or potential injury must first be established, otherwise a complainant cannot have the legal personality to sue nor raise a constitutional question before the courts of law. In simple terms, one cannot seek relief for an injury he/she never sustained in the first place. At first glance, one who has basic knowledge on the requisites of a judicial review might think that there is no way for the petitioners to possess a legal standing given that they did not sustain a direct, potential, or immediate injury upon the granting of Timber License Agreements (TLAs) of the DENR on anyone who they deem to be worthy and compliant of the requirements of such grant. However, in a careful and deep circumspection, there are no other proper entities that could better understand, empathize, and represent the future generation than the human kind of the present themselves. Logically speaking, the planet Earth, although holds life, continually being abused and therefore sustains an actual injury which is already tantamount to a cause of action, cannot represent itself in front of the jury, nor the future generations could represent themselves at the present time.

This right was already inherent under the 1987 Constitution, but it took so much keen attention for it to sprout, be interpreted and recognized as it is now. People were too busy making fortunes by exploiting the natural resources that they overlooked the fact that they are already committing a mortal sin to the planet, to

⁸ Oposa v. Factoran, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

⁹ Ex Parte Levitt, 303 U.S. 633 (1938), in Philippine Political Law 506, (Cruz & Cruz, 2014).

the people of tomorrow, and even to themselves. The right exists, but it seemed dead. It is there, yet it does not seem like it. It is there, yet no one calls out... until Atty. Tony Oposa.

The cost of not noticing was expensive. If only it was discovered sooner, the long litigation process could have been prevented, and thousands of trees could have been saved from exploitation. But the real bottom line of all this is that: if only humans were kind and mindful enough from the very beginning, thousands of trees, if not millions, could have been saved and thus have continuously thrived and flourished.

Thus, intergenerational responsibility must have been rather a new and extraordinary specie of legal standing as a concept in the eyes of the courts of justice in the Philippines back in 1993. Despite its novel character, it is worth noting that no risk is too high for a conviction that is so strong – a conviction that is anchored in the strong pursuit of attaining climate justice due to the “continued rape of mother Earth”¹⁰ and noble intention of preserving natural resources for the future generations to witness and make use of. It is indeed true that “justice must be realized along a continuum of time”¹¹ hence it must not be confined neither in the past, present, nor future; to attain its holistic form, it must also take into account the phases in between.

It must have been a leap of faith on the part of the ponente to reconsider the petitioners’ contention, upon the liberal interpretation as to the aspect of peculiar form of legal standing and the exception from the constitutional provision of non-impairment of contracts when public interest so demands. Besides, the court is vested with power to apply a liberal interpretation of laws for the genuine purpose of meeting the interest of justice and in the pursuit of public welfare.

The Oposa Effect

Oposa v. Factoran, since its promulgation, set the stage for the developments of environmental laws, procedures, legal instruments, or other strategic litigation cases on the basis of intergenerational equity and justice, and has

¹⁰ Oposa v. Factoran, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

¹¹ Singh Margaretha; et. al (August 3, 2023) <https://academic.oup.com/ejil/article/34/3/651/7236581>

since opened up opportunities for future child rights litigation particularly in the area of climate litigation.¹²

1. Oposa's Footprints on the Rules of Procedure for Environmental Cases

The fundamental doctrines and principles laid down under the *Oposa case* left a remarkable footprint, setting a guiding path towards the formulation and development of laws, rules, and procedures that lobby the right and provide relief for the people to realize their constitutionally vested right to a balanced and healthful ecology. The jurisprudential triumph of the *Oposa case* has become a major consideration, influence, and forms part as a rationale of the Supreme Court of the Philippines in the framework and promulgation of the 2010 Rules and Procedure for Environmental Cases.¹³ Under this rule, the concept of intergenerational responsibility as established in the *Oposa case* was explicitly manifested in the Rule 2, Section 5 on Citizen Suit, and Rule 5, Section 1 on the Reliefs in a Citizen Suit:

Rule 2, Sec. 5. *Citizen Suit*.— Any Filipino citizen in representation of others, including minors or generations yet unborn, may file an action to enforce rights or obligations under environmental laws...

Rule 5, Sec. 1. *Reliefs in a Citizen Suit*.— If warranted, the court may grant to the plaintiff proper reliefs which shall include the protection, preservation or rehabilitation of the environment and the payment of attorney's fees, costs of suit and other litigation expenses. It may also require the violator to submit a program of rehabilitation or restoration of the environment, the costs of which shall be borne by the violator, or to contribute to a special trust fund for that purpose subject to the control of the court.

Citizen suit seeks to liberalize the traditional rule on standing by relaxing the requirement of personal and direct interest for all cases filed to enforce environmental laws. This is intended to further encourage the protection of the environment as stewards of nature.¹⁴

¹² *Minors Oposa v. Secretary of the Department of Environment and Natural Resources* 33 I.L.M. 173 (1994). — Philippines, <https://www.acrisl.org/casenotes/m2l18m8skjpglk8-83mk2>

¹³ 2010 Rules and Procedure for Environmental Cases, <https://sc.judiciary.gov.ph/rules-of-procedure-for-environmental-cases/>

¹⁴ *Spouses Maliones et al. v. Mario Timario Jr. et al.* G.R. No. 252834, (February 6, 2023), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/69143>

These two pertinent provisions of the 2010 Rules and Procedure for Environmental Case underscores the value of intergenerational responsibility, emphasizing that citizens as legal representative can sue in behalf of the succeeding generations. Not only under this rule citizen suit is present, because it can also be traced even under some provisions of some revolutionary Philippine Environmental laws, such as the Clean Air Act¹⁵ and Ecological Solid Waste Management Act.¹⁶ Again, this goes to show the *Oposa case* has truly made a radical influence in the shaping and progress of the country's present and existing Environmental laws and procedures.

2. From one landmark case to another, Oposa Case Delivered

One notable landmark case that affirmed and drew inspiration from the *Oposa v. Factoran* case is the Metropolitan Manila Development Authority v. Concerned Residents of Manila Bay.¹⁷ The case revolved around the complaint of concerned residents of Manila Bay demanding the petitioners, MMDA and other government agencies for the clean-up, rehabilitation, and protection of the Manila Bay due to the drastic decline of water quality of the said body of water, which apparently endangers marine life and disturbs public health. Petitioners argue that the pertinent provisions of the Environment Code (P.D. 1152) relate only to the cleaning of specific pollution incidents and do not cover cleaning in general, and that the cleaning of the Manila Bay is not a ministerial act which can be compelled by mandamus.

The Court in its decision emphasized the extreme necessity for all concerned executive departments and agencies to immediately act and discharge their respective official duties and obligations. But the tasks ahead could only be accomplished if those mandated, with the cooperation of all civic-minded individuals, would put their minds to these tasks and take responsibility. Hence, the State, through petitioners, has to take the lead in the preservation and protection of the Manila Bay. The Court further reiterated that different government agencies and instrumentalities cannot shirk from their mandates; they must perform their basic functions in cleaning up and rehabilitating the Manila Bay.

So, it was that in *Oposa v. Factoran* the Court stated that the right to a balanced and healthful ecology need not even be written in the Constitution for it is assumed, like other civil and political rights guaranteed in the Bill of Rights, to exist from the inception of mankind” and it is an issue of transcendental importance with intergenerational implications. Even assuming the absence of a categorical legal

¹⁵ Philippine Clean Air Act of 1999, Rep. Act. 8749, (June 23, 1999), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/6028>

¹⁶ Ecological Solid Waste Management Act of 2000, REP. ACT 9003 (January 26, 2001), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/4800>

¹⁷ Metro Manila Development Authority v. Concerned Residents of Manila Bay, G.R. Nos. 171947-48, (December 18, 2008), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/48335>

provision specifically prodding petitioners to clean up the bay, they and the men and women representing them cannot escape their obligation to future generations of Filipinos to keep the waters of the Manila Bay clean and clear as humanly as possible.¹⁸

Similarly, in a recently decided case by the Supreme Court of the Philippines on February 6, 2023 *Spouses Maliones v. Timario, Jr.*,¹⁹ it was made evident how valuable the principle of intergenerational equity in *Oposa v. Factoran* is, in assailing people's right to a balanced and healthful ecology and demand for the protection and preservation of the environment, which is in accordance with a particular provision on citizen suit under the 2010 Rules of Procedure for Environmental Cases.

The case commenced through a citizen suit instituted by Timario et al.,²⁰ through a petition for enforcement of rights and obligations under environmental laws, cancellation of tax declarations, issuance of temporary environmental protection order and permanent environmental protection order, *mandamus*, cost of suit, and attorney's fees, against the Spouses Maliones, alleging that the subject land where the Datanians, the actual residents and individuals who trace their roots in Brgy. Data, freely pastured their farm animals and hold barangay picnics and scout jamborees of students in Mountain Province because tax declarations were issued in the names of the petitioners, *Spouses Maliones et al.*; they introduced improvements to the area that led to the exclusion of the public from its use and enjoyment equating to alleged violations of environmental laws that would lead to unimaginable environmental damage not only to the prejudice of their own constitutional right to a balanced and healthful ecology, but also to that of their children, the present generation, and the generations yet unborn.

Specifically, *Timario, et al.* alleged that Spouses Maliones were doing earth-moving and bulldozing activities that have destroyed the natural view and beauty of nature as the subject land had been turned into a wide vegetable plantation. They also claimed and alleged that Spouses Maliones are engaging in kaingin activities, and that alnus trees were cut, and pine trees were girdled and threatened to be cut which all apparently contributed to the destruction of the environment.²¹

They sought to enjoin activities which threatened to irreversibly damage and destroy a part of the public forest to which every Filipino citizen and even more

¹⁸ Metro Manila Development Authority v. Concerned Residents of Manila Bay, G.R. Nos. 171947-48, (December 18, 2008) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/48335>

¹⁹ *Spouses Maliones et al. v. Mario Timario Jr. et al.*, G.R. No. 252834, (February 6, 2023) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/6914>

²⁰ *Id.*

²¹ *Id.*

so the residents of the Municipality of Sabangan, Mountain Province, have a right to enjoy as part of their enforceable environmental rights. While they did not claim ownership over the subject land, they prayed for the cancellation of the tax declarations issued to their respective holders.²²

Timario, et al. prayed that *Spouses Maliones et al.* be ordered to cease from introducing improvements immediately and pleaded that the Department of Environment and Natural Resources - Community Environment and Natural Resources Office (DENR-CENRO) be compelled to zealously enforce and implement the environmental laws. They also prayed that the Provincial and Municipal Assessors of Mountain Province be compelled to release certified true copies of the tax declarations in the name of *Spouses Maliones et al.*; and mandated the Punong Barangay of Data to actively participate in the environmental management and protection programs of the government – all to which the Regional Trial Court favorably so ordered. Hence the appeal of *Spouses Maliones et al.* to the Court of Appeals. The appellate court denied the appeal, hence the elevation of the case to the Supreme Court.²³

The Supreme Court in its decision, reiterated that: while it has to refrain from resolving the underlying issues on the ownership of the subject land and the recognition of the parties as indigenous cultural communities/indigenous peoples, since the same must be addressed in the proper case and in the correct forum; it is nonetheless not precluded from granting reliefs available to *Timario, et al.*, in accordance with Section 1, Rule 5 of the Rules of Procedure for Environmental Cases. It has declared as an affirmation to RTC and CA's finding that there exist an actual or imminent threat that can be attributed to *Spouses Maliones et al.* and the activities they are conducting on the subject area that violate environmental statutes and cause prejudice the life, health, or property of residents of Barangay Data, Sabangan, Mountain Province. Hence, The DENR-CAR and CENRO in Sabangan, Mountain Province are ordered to prevent *Spouses Maliones et al.* from converting forest zones into vegetable farms; engaging in illegal activities; cause the rehabilitation of the area affected by the bulldozing activities; and ensuring environmental protection. The Punong Barangay of Data, Sabangan is also required to actively participate in government environmental management programs and assist in enforcing environmental laws.²⁴ This decision was primarily anchored from the pertinent provision of the 2010 Rules on Environmental Cases on Citizen Suit which was originally grounded from the concept of intergenerational responsibility as laid down in *Oposa v. Factoran*.

These cases apparently have more than a decade gap from the time of their respective promulgation, which might indicate that environmental cases in the Philippines are not after all as progressive as it seems based only from the accounts

²² *Spouses Maliones et al. v. Mario Timario Jr. et al.*, G.R. No. 252834, (February 6, 2023) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/6914>

²³ *Id.*

²⁴ *Id.*

of the cases of Oposa to Timario. Oposa did not even have a direct implication as to the result of the case of *Spouses Maliones v. Timario, Jr.*; in fact, there was no single word nor citation mentioning the name of Oposa indicated in the decision. Nonetheless, if we were to read between the lines, one would realize that the spirit of the Oposa case lingered around and served as a driving force in advancing the power and significance of the concept of intergenerational responsibility as adapted in the 2010 Rules of Procedure on Environmental Cases towards the protection and preservation of the natural environment.

Hence, it is of basic and common understanding that the right to a balanced and healthful ecology is a right inherently enshrined in each of dwellers of the planet, but it must also be instilled in each of us that this constitutional right carries with it a correlative duty to refrain from impairing the environment.²⁵

Oposa v. Factoran as a Global Jurisprudential Icon

After its historic win in 1993 in the Supreme Court of the Philippines, *Oposa v. Factoran* became a jurisprudential icon, prompting it to be featured as a subject in countless scholarly works in the aspect of environmental law and climate justice across the globe. The Oposa Doctrine has been cited and replicated all over the world,²⁶ it got even cited as a precedent in some Bangladeshi and Indian courts;²⁷ more recently in on-going climate litigation cases such as the Juliana case in the United States.²⁸ The concept of intergenerational responsibility as a form of legal standing as highlighted in the *Oposa v. Factoran* became an inspiration to several courts worldwide especially in the global South, and it signals that many more courts

²⁵ Oposa v. Factoran, G.R. No. 101083, (July 30, 1993) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=27868&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=3&hits=4+10+1be4+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

²⁶ Bueta, Gregorio Rafael (June 21, 2019) Environmental Jurisprudence from the Philippines: Are Climate Litigation Cases Just Around the Corner?, <https://www.iucn.org/news/world-commission-environmental-law/201906/environmental-jurisprudence-philippines-are-climate-litigation-cases-just-around-corner>

²⁷ Philippines: Minors Oposa v. Sec'y of Dep't of Env't & Natural Res., (December 27, 1993) (Phil.), https://www.hurights.or.jp/english/human_rights_and_jurisprudence/1993/12/philippines-minors-oposa-v-secy-of-dept-of-envt-natural-res-sup-ct-1993-33-ilm-173-1994.html

²⁸ Juliana v. United States, Ninth Circuit Holds that Developing and Supervising Plan to Mitigate Anthropogenic Climate Change Would Exceed Remedial Powers of Article III Court. Comment on: 947 F.3d 1159 (9th Cir. 2020), <https://harvardlawreview.org/print/vol-134/juliana-v-united-states/>

and other actors in the litigation process are about to join, diversify and enrich this global discussion.²⁹

30 Years after *Oposa v. Factoran*

The framing of the 1987 Constitution of the Philippines covered a self-executing provision that underscores the paramount importance of the promotion, protection, and preservation of the environment. “The State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature.”³⁰ This provision paved the way for *Oposa v. Factoran* to create a radical precedent for other cases with common interest of protecting and preserving the environment. 30 years later, it still remains as a revolutionary precedent, cementing itself in the international pedestal as a solid legal instrument that has a potential of reshaping and transforming international law that would address environmental crisis in the ambitious hope of attaining climate justice. It may even be considered as jurisprudential messiah in the aspect of environmental litigation, for it has assisted in saving natural forests or at least mitigating the drastic and rapid effects of environmental degradation.

Ironically, 30 years after *Oposa v. Factoran*, while it became a cornerstone, a global jurisprudential icon for environmental activism and climate justice, we are still confronted with the sad truth that it did not diminish the harsh reality that the planet still remains to be in constant peril. We, the present dwellers of the planet are fortunate enough that we can still be able to witness and experience the vestiges and wonders of nature up until this very moment; this was made possible because of our ancestors from yesterday, and so, we owe a home no less than of what we have today to the children of tomorrow.

²⁹ Singh, Margaretha; et. Al, (August 3, 2023) <https://academic.oup.com/ejil/article/34/3/651/7236581>

³⁰ CONST. (1987), art. II, §16 (Phil.).

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